

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Motion to Stay Mandate

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 25, 2026

Open Grid moves under Federal Rule of Appellate Procedure 41(d)(1) to stay the mandate while it prepares a petition for a writ of certiorari. The isolated panel affirmed all four corrected rulings on May 29 and denied rehearing on June 22. That denial order shortened the remaining Rule 40 period and expressly directed mandate for June 29 absent further relief.

The contemplated petition will ask how a court may verify a functional exemption group without exposing the withheld relation, what evidence establishes completion of a renewed segregation review, and what findings justify passage-specific restriction of judicial records. Open Grid does not seek disclosure during this motion and does not contest the fictional search.

Those issues are substantial because they concern distinct statutory and public-access duties that should not be collapsed into the organization of a corrected worksheet. Good cause exists to preserve the status quo for a short, defined period while review is sought. No real agency record or cyber information is involved.

Rule 40 and Rule 41 Chronology

The counterfactual opinion and judgment were entered May 29. Because DOE is a United States agency, Rule 40 otherwise allowed forty-five days to seek rehearing. Open Grid filed much earlier, on June 12. DOE responded after the Court requested an answer, and the panel denied both panel and en banc rehearing on June 22 while shortening any remaining Rule 40 period to that date.

With the rehearing window expressly shortened, Rule 41(b)'s later-of calculation and the denial order both direct mandate for June 29. This motion is filed four days before that ordered issuance and asks the Court to act before the judgment becomes effective through mandate.

Rule 41(d)(1) permits a stay pending a certiorari petition when the motion shows that the petition would present a substantial question and that good cause supports relief. Under Rule 41(d)(2), a granted stay generally may not exceed ninety days unless extended for good cause or a qualifying petition is filed. Open Grid accepts those limits and will report any abandonment promptly.

The filing of this motion does not itself grant a merits stay or decide the request. The mandate date will follow Rule 41's later-of calculation and whatever order the Court enters after considering the motion.

Substantial Question Concerning Functional Proof

The opinion allows four limited 7(F) groups after document-by-document review: duty assignment, contact category, safety reference, and human-linked escalation placement. It describes a causal theory for each and excludes generic labels. Open Grid nevertheless submits that the boundary between function and description warrants review.

A category can be coherent in the agency's worksheet while still failing to show that a disputed segment performs the stated role. The safe public account must permit a court to test correlation and causation without assuming that the reviewer's classification is correct. This question is not a demand for the authentic value or a threatened person's name.

The same concern touches overlap. A relation protected as an implementation detail under 7(E) does not automatically create expected physical danger under 7(F). The corrected worksheet records separate rationales, but the opinion's representative explanation may leave uncertainty about the evidentiary threshold for a dual-marked segment.

Whether functional grouping remains reviewable when the protected relation cannot be repeated publicly is a recurring legal question, not merely disagreement about a fictional label.

Substantial Question Concerning Segregability

DOE's renewed line review released seventeen passages across eleven already-produced images. Six images gained two passages and five gained one. The additional text included ownership, headings, approval information, revision context, archival direction, and general coordination. No source record or source page was added.

Open Grid agrees that this correction is meaningful. It also demonstrates that prior proximity judgments retained intelligible administration. The question is what evidence suffices to prove that the final residual decisions are complete, especially for the three records withheld in full.

The panel relied on page-linked explanations that classify each proposed fragment as relational, noninformative after deletion, or releasable. A certiorari petition would argue that a court must explain how it tested plausible administrative candidates rather than infer completion from the existence of a comprehensive worksheet.

This issue preserves the distinction between exemption coverage and the duty to disclose a reasonably segregable portion. It can be reviewed using the public account and inert examples; no authentic implementation or human-safety content need be exposed.

Substantial Question Concerning Judicial Access

The corrected sealing premise is much narrower than aggregate closure. It uses public counterparts, identifies individual controlled passages, considers alternatives, provides a finite duration, and requires verified disclosure-specific access. Open Grid supports those safeguards while questioning whether the stated findings justify every closed unit.

The contemplated petition would ask whether technical precision in enforcing a restriction can substitute for a sufficiently particular judicial finding. It cannot. Public-only projection, content verification, leased views, and revocation matter only after a court identifies the access right, supporting interest, necessary scope, and less restrictive alternatives.

The panel said the corrected order made passage-specific findings. Open Grid contends that some explanations still operate at the level of a functional group. Determining when representative reasoning is specific enough for dispositive-motion materials presents a substantial public-access question under the principles applied in *Company Doe v. Public Citizen*.

A temporary stay would preserve the finite access arrangement while that question is presented. It would neither expand closure nor grant Open Grid a controlled view.

Good Cause and the Status Quo

Mandate would make the full affirmance effective and begin the thirty-day endpoint for the corrected access restrictions. If review is sought after that interval begins, the parties and fictional clerks may need to address an access transition while the governing judgment remains under challenge. A brief stay avoids that administrative complication.

DOE faces no operational prejudice from delay. The district judgment requires no affirmative disclosure or remand, and the controlled counterparts already remain available to authorized judicial participants. The stay would preserve, rather than alter, the public and controlled projections.

Open Grid has proceeded diligently. It filed rehearing fourteen days after judgment, received the denial on June 22, and brings this motion three days later. It represents that counsel is preparing a certiorari petition directed to the legal distinctions stated here, not using the request to postpone an inevitable ministerial event.

Good cause also follows from the bounded nature of relief. The Court can require status reports and immediate notice if Open Grid elects not to proceed. No extension need outlast the purpose that supports it.

Requested Duration and Conditions

Open Grid requests a stay for no more than ninety days from entry of an order, subject to earlier dissolution if it abandons the petition. If a petition is filed within the permitted period, the stay may continue as Rule 41(d)(2) allows until final disposition, unless the Court orders otherwise.

Counsel will lodge proof of filing through the fictional docket and report any extension request or disposition that affects the stay. Because the judgment awards no money and the appeal concerns record access and FOIA analysis, Open Grid submits that security is unnecessary. The Court may impose a narrowly related condition if it finds one appropriate.

The requested order should preserve current public availability and existing controlled restrictions without creating a new disclosure entitlement. It should not suspend ordinary clerk functions unrelated to mandate, alter costs, or imply a view about the eventual certiorari petition.

If the motion is denied, Open Grid asks the Court to state the issuance date so the branch chronology remains unambiguous. That alternative request does not predict the ruling.

Conclusion and Certification

Open Grid has identified substantial questions about verifiable functional proof, affirmative segregability evidence, and passage-specific judicial access. A short stay would preserve the exact corrected arrangement while those questions are presented and would cause no practical harm to DOE.

The motion asks only to withhold mandate. It does not seek rehearing again, amend the May 29 opinion, add an evidentiary record, or reveal a protected field. Every sensitive-looking term remains an approved public notice or an abstract legal description.

Tamsin Roe and Leo Marr certify that this filing contains eight logical pages and was served on Corin Pell through the isolated exercise system on June 25, 2026. They will notify the Court promptly if the contemplated petition is abandoned or filed.

Open Grid respectfully requests a stay consistent with Rule 41(d)(1), subject to the duration rules in Rule 41(d)(2). This motion was never filed on the actual appeal and creates no stay unless the fictional panel enters a separate order.